

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2109

By: Osburn

AS INTRODUCED

An Act relating to campaign finance and financial disclosure; amending 11 O.S. 2021, Section 56-101, 56-102, 56-104, 56-105, 56-106, 56-107, 56-108, 56-109, and 56-110, which relate to the Municipal Campaign Finance and Financial Disclosure Act; clarifying citation; modifying definition; requiring campaign committees file statement of organization with the Ethics Commission; requiring municipal political committees file statement of organization with the Ethics Commission; mandating reports of certain municipal contributions and expenditures be filed with Ethics Commission; clarifying that certain required records under the Municipal Campaign Finance and Financial Disclosure Act will be filed and stored with the Ethics Commission; extending ability of the Ethics Commission to post copies of certain records on website for public records purposes; amending 19 O.S. 2021, Section 138.11, 138.12, 138.13, 138.14, 138.15, 138.16, 138.17, 138.18, and 138.19, which relate to the County Campaign Finance and Financial Disclosure Act; clarifying citation; modifying definition; requiring campaign committees file statement of organization with the Ethics Commission; requiring county political committees file statement of organization with the Ethics Commission; mandating reports of certain county contributions and expenditures be filed with Ethics Commission; clarifying that certain required records under the County Campaign Finance and Financial Disclosure Act are will be filed and stored with the Ethics Commission; clarifying statements of financial interests required by the County Campaign Finance and Financial Disclosure Act will be filed and stored with the Ethics Commission; amending 70 O.S. 2021, Section 2-110, 2-111, 2-113, 2-114, 2-115, 2-116, 2-

117, 2-118, and 2-119, which relate to the Technology Center District and Independent School District Campaign Finance and Financial Disclosure Act; modifying definition; requiring campaign committees file statement of organization with the Ethics Commission; requiring school district political committees file statement of organization with the Ethics Commission; mandating reports of contributions and expenditures by campaign committees and school district political committees be filed with Ethics Commission; clarifying that certain required records under the Technology Center District and Independent School District Campaign Finance and Financial Disclosure Act will be filed and stored with the Ethics Commission; clarifying statements of financial interests required by the Technology Center District and Independent School District Campaign Finance and Financial Disclosure Act will be filed and stored with the Ethics Commission; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 56-101, is amended to read as follows:

Section 56-101. Sections ~~11 through 20~~ 56-101 through 56-110 of this ~~act~~ title shall be the provisions of the Local Government Campaign Finance and Financial Disclosure Act applicable to municipalities and shall be known as the "Municipal Campaign Finance and Financial Disclosure Act".

SECTION 2. AMENDATORY 11 O.S. 2021, Section 56-102, is amended to read as follows:

Section 56-102. A. Definitions of terms used in the Municipal Campaign Finance and Financial Disclosure Act shall be the same as

1 those terms are defined in Rules of the Ethics Commission
2 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
3 Constitution, unless otherwise provided herein.

4 B. As used in the Municipal Campaign Finance and Financial
5 Disclosure Act:

6 1. "Campaign committee" means a committee which may be composed
7 of one or more persons the purpose of which is to support the
8 election of a specific candidate to municipal office, whose name as
9 it will appear on the ballot shall appear in the name of the
10 committee;

11 2. "Municipal office" means any elective municipal office
12 established under state or municipal law; and

13 3. "Municipal political committee" means any committee composed
14 of one or more persons whose purpose includes the election or defeat
15 of one or more candidates for municipal office but which is not
16 required to register with ~~the Ethics Commission or~~ the Federal
17 Election Commission.

18 SECTION 3. AMENDATORY 11 O.S. 2021, Section 56-104, is
19 amended to read as follows:

20 Section 56-104. Each campaign committee shall file a statement
21 of organization with the ~~municipal clerk~~ Ethics Commission subject
22 to the same requirements as set forth for candidate committees for
23 state office required to file statements of organization ~~with the~~
24 ~~Ethics Commission~~ under Rules of the Ethics Commission promulgated

1 pursuant to Section 3 of Article XXIX of the Oklahoma Constitution,
2 including but not limited to time for filing and contents.

3 SECTION 4. AMENDATORY 11 O.S. 2021, Section 56-105, is
4 amended to read as follows:

5 Section 56-105. Every municipal political committee shall file
6 a statement of organization with the ~~municipal clerk~~ Ethics
7 Commission subject to the same requirements as set forth for
8 political committees required to file statements of organization
9 ~~with the Ethics Commission~~ under Rules of the Ethics Commission
10 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
11 Constitution, including but not limited to time for filing and
12 contents.

13 SECTION 5. AMENDATORY 11 O.S. 2021, Section 56-106, is
14 amended to read as follows:

15 Section 56-106. Every campaign committee and every municipal
16 political committee shall file a report of contributions and
17 expenditures with the ~~municipal clerk~~ Ethics Commission subject to
18 the same requirements as set forth for candidate committees and
19 political action committees, respectively, required to file reports
20 of contributions and expenditures ~~with the Ethics Commission~~ under
21 Rules of the Ethics Commission promulgated pursuant to Section 3 of
22 Article XXIX of the Oklahoma Constitution, including but not limited
23 to time for filing and contents.

1 SECTION 6. AMENDATORY 11 O.S. 2021, Section 56-107, is
2 amended to read as follows:

3 Section 56-107. Statements of organization and reports of
4 contributions and expenditures required to be filed with the
5 ~~municipal clerk~~ Ethics Commission under the Municipal Campaign
6 Finance and Financial Disclosure Act shall be public records. The
7 ~~municipal clerk~~ Ethics Commission shall maintain statements of
8 organization and reports of contributions and expenditures for four
9 (4) years after the date on which they are filed, if not posted on
10 the ~~municipality's~~ Ethics Commission's website as provided herein,
11 at which time the documents may be destroyed or retained subject to
12 the discretion of the ~~municipal clerk~~ Ethics Commission. ~~If the~~
13 ~~municipality in which the statements of organization and reports of~~
14 ~~contributions and expenditures are filed maintains an Internet~~
15 ~~website, the municipal clerk~~ The Ethics Commission may post on the
16 website copies of statements of organization and reports of
17 contributions and expenditures.

18 SECTION 7. AMENDATORY 11 O.S. 2021, Section 56-108, is
19 amended to read as follows:

20 Section 56-108. All candidates for municipal office and all
21 elected municipal officers shall be required to file a statement of
22 financial interests with the ~~municipal clerk~~ Ethics Commission
23 subject to the same requirements as set forth for candidates for
24 state office required to file statements of financial interests ~~with~~

1 ~~the Ethics Commission~~ under Rules of the Ethics Commission
2 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
3 Constitution, including but not limited to time for filing and
4 contents.

5 SECTION 8. AMENDATORY 11 O.S. 2021, Section 56-109, is
6 amended to read as follows:

7 Section 56-109. Statements of financial interests required to
8 be filed with the ~~municipal clerk~~ Ethics Commission under the
9 Municipal Campaign Finance and Financial Disclosure Act shall be
10 public records. The ~~municipal clerk~~ Ethics Commission shall
11 maintain statements of financial interests for four (4) years after
12 the date on which they are filed, if not posted on the
13 ~~municipality's~~ Ethics Commission's website as provided herein, at
14 which time the documents may be destroyed or retained subject to the
15 discretion of the ~~municipal clerk~~ Ethics Commission. ~~If the~~
16 ~~municipality in which the statements of financial interests are~~
17 ~~filed maintains an Internet website, the municipal clerk~~ The Ethics
18 Commission may post on the website copies of statements of financial
19 interests.

20 SECTION 9. AMENDATORY 11 O.S. 2021, Section 56-110, is
21 amended to read as follows:

22 Section 56-110. The Municipal Campaign Finance and Financial
23 Disclosure Act shall be enforced by the Ethics Commission in the
24 same manner as Rules of the Ethics Commission promulgated pursuant

1 to Section 3 of Article XXIX of the Oklahoma Constitution are
2 enforced, including but not limited to acceptance of complaints,
3 civil prosecutions, settlement agreements and any other compliance
4 practices or requirements. ~~Complaints may be received by the Ethics~~
5 ~~Commission alleging filing of statements or reports required to be~~
6 ~~filed under the Municipal Campaign Finance and Financial Disclosure~~
7 ~~Act later than the prescribed time for filing. Such complaints~~
8 Complaints shall be ~~in the same form as other complaints made~~
9 according to the Rules of the Ethics Commission promulgated pursuant
10 to Section 3 of Article XXIX of the Oklahoma Constitution. Upon
11 receipt of such complaints of late filing, the Ethics Commission
12 shall investigate whether the allegation or allegations are true
13 and, if so, shall assess a late filing penalty of One Hundred
14 Dollars (\$100.00) per day, not to exceed a maximum of One Thousand
15 Dollars (\$1,000.00) for the filing of any statement or report. If
16 the Ethics Commission determines the allegation or allegations are
17 not true, it shall take no further action. Persons assessed a late
18 filing fee may protest the assessment subject to provisions of the
19 Administrative Procedures Act.

20 SECTION 10. AMENDATORY 19 O.S. 2021, Section 138.11, is
21 amended to read as follows:

22 Section 138.11. Sections ~~2 through 10~~ 138.12 through 138.19 of
23 this ~~act~~ title shall be the provisions of the Local Government
24 Campaign Finance and Financial Disclosure Act applicable to counties

1 and shall be known as the "County Campaign Finance and Financial
2 Disclosure Act".

3 SECTION 11. AMENDATORY 19 O.S. 2021, Section 138.12, is
4 amended to read as follows:

5 Section 138.12. A. Definitions of terms used in the County
6 Campaign Finance and Financial Disclosure Act shall be the same as
7 those terms are defined in Rules of the Ethics Commission
8 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
9 Constitution, unless otherwise provided herein.

10 B. As used in the County Campaign Finance and Financial
11 Disclosure Act:

12 1. "Campaign committee" means a committee which may be composed
13 of one or more persons the purpose of which is to support the
14 election of a specific candidate to county office, whose name as it
15 will appear on the ballot shall appear in the name of the committee;

16 2. "County office" means any elective county office for which
17 Declarations of Candidacy are filed with the secretary of the county
18 election board as required by Section 5-103 of Title 26 of the
19 Oklahoma Statutes; and

20 3. "County political committee" means any committee composed of
21 one or more persons whose purpose includes the election or defeat of
22 one or more candidates for county office but which is not required
23 to register with ~~the Ethics Commission or~~ the Federal Election
24 Commission.

1 SECTION 12. AMENDATORY 19 O.S. 2021, Section 138.13, is
2 amended to read as follows:

3 Section 138.13. Each campaign committee shall file a ~~notarized~~
4 statement of organization with the ~~county election board~~ Ethics
5 Commission subject to the same requirements as set forth for
6 candidate committees for state office to file statements of
7 organization ~~with the Ethics Commission~~ under Rules of the Ethics
8 Commission promulgated pursuant to Section 3 of Article XXIX of the
9 Oklahoma Constitution, including but not limited to time for filing
10 and contents, except as otherwise provided in the County Campaign
11 Finance and Financial Disclosure Act. ~~The statement of organization~~
12 ~~shall be accompanied by a check drawn upon the campaign committee's~~
13 ~~account in the amount of Fifty Dollars (\$50.00) as a nonrefundable~~
14 ~~processing fee to be deposited in the County Election Board Special~~
15 ~~Depository Account. Expenditures from such fees may be made by the~~
16 ~~secretary of the county election board for any lawful purpose.~~

17 SECTION 13. AMENDATORY 19 O.S. 2021, Section 138.14, is
18 amended to read as follows:

19 Section 138.14. Every county political committee shall file a
20 notarized statement of organization with the ~~county election board~~
21 Ethics Commission subject to the same requirements as set forth for
22 political committees required to file statements of organization
23 ~~with the Ethics Commission~~ under Rules of the Ethics Commission
24 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma

1 Constitution, including but not limited to time for filing and
2 contents.

3 SECTION 14. AMENDATORY 19 O.S. 2021, Section 138.15, is
4 amended to read as follows:

5 Section 138.15. Every campaign committee and every county
6 political committee shall file reports of contributions and
7 expenditures with the ~~county election board~~ Ethics Commission
8 subject to the same requirements as set forth for reports of
9 contributions and expenditures filed ~~with the Ethics Commission~~
10 under Rules of the Ethics Commission promulgated pursuant to Section
11 3 of Article XXIX of the Oklahoma Constitution, including but not
12 limited to time for filing and contents.

13 SECTION 15. AMENDATORY 19 O.S. 2021, Section 138.16, is
14 amended to read as follows:

15 Section 138.16. Statements of organization and reports of
16 contributions and expenditures required under the County Campaign
17 Finance and Financial Disclosure Act shall be public records. The
18 ~~county election board~~ Ethics Commission shall maintain statements of
19 organization and reports of contributions and expenditures for four
20 (4) years after the date on which they are filed or prepared, if not
21 posted on the county's website as provided herein, at which time the
22 documents may be destroyed or retained at the discretion of the
23 ~~county election board~~ Ethics Commission. ~~If the county in which the~~
24 ~~statements of organization are filed maintains an Internet website,~~

1 ~~the county election board~~ The Ethics Commission may post on the
2 website copies of statements of organization and reports of
3 contributions and expenditures.

4 SECTION 16. AMENDATORY 19 O.S. 2021, Section 138.17, is
5 amended to read as follows:

6 Section 138.17. All candidates for county office and all
7 elected county officers shall be required to file a ~~notarized~~
8 statement of financial interests with the ~~county election board~~
9 Ethics Commission subject to the same requirements as set forth for
10 statements of financial interests filed ~~with the Ethics Commission~~
11 under Rules of the Ethics Commission promulgated pursuant to Section
12 3 of Article XXIX of the Oklahoma Constitution.

13 SECTION 17. AMENDATORY 19 O.S. 2021, Section 138.18, is
14 amended to read as follows:

15 Section 138.18. Statements of financial interests required
16 under the County Campaign Finance and Financial Disclosure Act shall
17 be public records. The ~~county election board~~ Ethics Commission
18 shall maintain statements of financial interests for four (4) years
19 after the date on which they are filed, at which time the documents
20 may be destroyed or retained at the discretion of the ~~county~~
21 ~~election board~~ Ethics Commission.

22 SECTION 18. AMENDATORY 19 O.S. 2021, Section 138.19, is
23 amended to read as follows:

1 Section 138.19. The County Campaign Finance and Financial
2 Disclosure Act shall be enforced by the Ethics Commission in the
3 same manner as Rules of the Ethics Commission promulgated pursuant
4 to Section 3 of Article XXIX of the Oklahoma Constitution are
5 enforced, including but not limited to acceptance of complaints,
6 civil prosecutions, settlement agreements and any other compliance
7 practices or requirements. Complaints ~~may be received by the Ethics~~
8 ~~Commission alleging filing of statements required to be filed under~~
9 ~~the County Campaign Finance and Financial Disclosure Act later than~~
10 ~~the prescribed time for filing or failure to produce reports~~
11 ~~required to be available for public inspection and copying. Such~~
12 ~~complaints shall be in the same form as other complaints made~~
13 according to the Rules of the Ethics Commission promulgated pursuant
14 to Section 3 of Article XXIX of the Oklahoma Constitution. Upon
15 receipt of such complaints, the Ethics Commission shall investigate
16 whether the allegation or allegations are true and, if so, shall
17 assess a late reporting penalty of up to One Hundred Dollars
18 (\$100.00) per day, not to exceed a maximum of One Thousand Dollars
19 (\$1,000.00) for the filing of any statement or report. If the
20 Ethics Commission determines the allegation or allegations are not
21 true, it shall take no further action. Persons assessed a late
22 reporting penalty may protest the assessment subject to provisions
23 of the Administrative Procedures Act.

1 SECTION 19. AMENDATORY 70 O.S. 2021, Section 2-110, is
2 amended to read as follows:

3 Section 2-110. Sections ~~21 through 30~~ 2-110 through 2-119 of
4 this ~~act~~ title shall be the provisions of the Local Government
5 Campaign Finance and Financial Disclosure Act applicable to
6 technology center districts and independent school districts and
7 shall be known as the "Technology Center District and Independent
8 School District Campaign Finance and Financial Disclosure Act".

9 SECTION 20. AMENDATORY 70 O.S. 2021, Section 2-111, is
10 amended to read as follows:

11 Section 2-111. A. Definitions of terms used in the Technology
12 Center District and Independent School District Campaign Finance and
13 Financial Disclosure Act shall be the same as those terms are
14 defined in Rules of the Ethics Commission promulgated pursuant to
15 Section 3 of Article XXIX of the Oklahoma Constitution, unless
16 otherwise provided herein.

17 B. As used in the Technology Center District and Independent
18 School District Campaign Finance and Disclosure Act:

19 1. "Campaign committee" means a committee which may be composed
20 of one or more persons the purpose of which is to support the
21 election of a specific candidate to school district office, whose
22 name as it will appear on the ballot shall appear in the name of the
23 committee;

24

1 2. "School district" means a technology center district or an
2 independent school district;

3 3. "School district office" means any elective school district
4 office for which Declarations of Candidacy are filed with the
5 secretary of the county election board as required by Section 13A-
6 105 of Title 26 of the Oklahoma Statutes; and

7 4. "School district political committee" means any committee
8 composed of one or more persons whose purpose includes the election
9 or defeat of one or more candidates for school district office but
10 which is not required to register with ~~the Ethics Commission or the~~
11 Federal Election Commission.

12 SECTION 21. AMENDATORY 70 O.S. 2021, Section 2-113, is
13 amended to read as follows:

14 Section 2-113. Each campaign committee shall file a statement
15 of organization with the ~~school district clerk~~ Ethics Commission
16 subject to the same requirements as set forth for candidate
17 committees for state office required to file statements of
18 organization ~~with the Ethics Commission~~ under Rules of the Ethics
19 Commission promulgated pursuant to Section 3 of Article XXIX of the
20 Oklahoma Constitution, including but not limited to time for filing
21 and contents.

22 SECTION 22. AMENDATORY 70 O.S. 2021, Section 2-114, is
23 amended to read as follows:

1 Section 2-114. Every school district political committee shall
2 file a statement of organization with the ~~school district clerk~~
3 Ethics Commission subject to the same requirements as set forth for
4 political committees required to file statements of organization
5 ~~with the Ethics Commission~~ under Rules of the Ethics Commission
6 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
7 Constitution, including but not limited to time for filing and
8 contents.

9 SECTION 23. AMENDATORY 70 O.S. 2021, Section 2-115, is
10 amended to read as follows:

11 Section 2-115. Every campaign committee and every school
12 district political committee shall file a report of contributions
13 and expenditures with the ~~school district clerk~~ Ethics Commission
14 subject to the same requirements as set forth for candidate
15 committees and political action committees, respectively, required
16 to file reports of contributions and expenditures ~~with the Ethics~~
17 ~~Commission~~ under Rules of the Ethics Commission promulgated pursuant
18 to Section 3 of Article XXIX of the Oklahoma Constitution, including
19 but not limited to time for filing and contents.

20 SECTION 24. AMENDATORY 70 O.S. 2021, Section 2-116, is
21 amended to read as follows:

22 Section 2-116. Statements of organization and reports of
23 contributions and expenditures required to be filed with the ~~school~~
24 ~~district clerk~~ Ethics Commission under the Technology Center

1 District and Independent School District Campaign Finance and
2 Financial Disclosure Act shall be public records. The ~~school~~
3 ~~district clerk~~ Ethics Commission shall maintain statements of
4 organization and reports of contributions and expenditures for four
5 (4) years after the date on which they are filed, if not posted on
6 the school district's website as provided herein, at which time the
7 documents may be destroyed or retained subject to the discretion of
8 the ~~school district clerk~~ Ethics Commission. If the ~~school district~~
9 ~~in which the statements of organization and reports of contributions~~
10 ~~and expenditures are filed maintains an Internet website, the school~~
11 ~~district clerk~~ The Ethics Commission may post on the website copies
12 of statements of organization and reports of contributions and
13 expenditures.

14 SECTION 25. AMENDATORY 70 O.S. 2021, Section 2-117, is
15 amended to read as follows:

16 Section 2-117. All candidates for school district office and
17 all elected school district officers shall be required to file a
18 statement of financial interests with the ~~school district clerk~~
19 Ethics Commission subject to the same requirements as set forth for
20 candidates for state office required to file statements of financial
21 interests ~~with the Ethics Commission~~ under Rules of the Ethics
22 Commission promulgated pursuant to Section 3 of Article XXIX of the
23 Oklahoma Constitution, including but not limited to time for filing
24 and contents.

1 SECTION 26. AMENDATORY 70 O.S. 2021, Section 2-118, is
2 amended to read as follows:

3 Section 2-118. Statements of financial interests required to be
4 filed with the ~~school district clerk~~ Ethics Commission under the
5 Technology Center District and Independent School District Campaign
6 Finance and Financial Disclosure Act shall be public records. The
7 ~~school district clerk~~ Ethics Commission shall maintain statements of
8 financial interests for four (4) years after the date on which they
9 are filed, if not posted on the ~~school district's~~ Ethics
10 Commission's website as provided herein, at which time the documents
11 may be destroyed or retained subject to the discretion of the school
12 district clerk. If the school district in which the statements of
13 financial interests are filed maintains an Internet website, the
14 school district clerk may post on the website copies of statements
15 of financial interests.

16 SECTION 27. AMENDATORY 70 O.S. 2021, Section 2-119, is
17 amended to read as follows:

18 Section 2-119. The Technology Center District and Independent
19 School District Campaign Finance and Financial Disclosure Act shall
20 be enforced by the Ethics Commission in the same manner as Rules of
21 the Ethics Commission promulgated pursuant to Section 3 of Article
22 XXIX of the Oklahoma Constitution are enforced, including but not
23 limited to acceptance of complaints, civil prosecutions, settlement
24 agreements and any other compliance practices or requirements.

~~Complaints may be received by the Ethics Commission alleging filing of statements or reports required to be filed under the Technology Center District and Independent School District Campaign Finance and Disclosure Act later than the prescribed time for filing. Such complaints~~ Complaints shall be in the same form as other complaints made according to the Rules of the Ethics Commission promulgated pursuant to Section 3 of Article XXIX of the Oklahoma Constitution.

Upon receipt of such complaints of late filing, the Ethics Commission shall investigate whether the allegation or allegations are true and, if so, shall assess a late filing penalty of One Hundred Dollars (\$100.00) per day, not to exceed a maximum of One Thousand Dollars (\$1,000.00) for the filing of any statement or report. If the Ethics Commission determines the allegation or allegations are not true, it shall take no further action. Persons assessed a late filing fee may protest the assessment subject to provisions of the Administrative Procedures Act.

SECTION 28. This act shall become effective July 1, 2025.

SECTION 29. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

60-1-10197 MJ 01/03/25